

1. Line 92 through 106:

92 (3) (a) The minimum fine for a violation of Subsection (1):
 93 (i) for a first offense shall be calculated according to the following schedule:
 98 (ii) for a second and subsequent offense within three years of a previous conviction
 99 ~~↔ or bail forfeiture ↔~~ shall be calculated according to the following schedule:
 104 (b) (i) Except as provided under Subsection ~~[(2)(a)(ii)]~~(3)(a)(ii), the court may order
 105 the person to perform compensatory service in lieu of the fine or any portion of
 106 the fine.

2. Line 107 through 119:

107 (ii) The court shall order the person to perform compensatory service observing a
 108 crossing guard if the conviction is for a:
 109 (A) first offense with a vehicle speed of 30 miles per hour or more; or
 110 (B) second and subsequent offense within three years of a previous conviction ~~↔~~
 110a ~~or~~
 111 **bail forfeiture** ~~↔~~ .
 112 (iii) The court may waive the compensatory service required under Subsection [
 113 ~~(2)(b)(ii)]~~(3)(b)(ii) if the court makes the reasons for the waiver part of the record.
 114 ~~[(3)]~~(4) The Driver License Division shall develop and implement a record system to
 113 ~~(2)(b)(ii)]~~(3)(b)(ii) if the court makes the reasons for the waiver part of the record.
 114 ~~[(3)]~~(4) The Driver License Division shall develop and implement a record system to
 115 distinguish:
 116 (a) a conviction ~~↔ or bail forfeiture ↔~~ under this section from other convictions; and
 117 (b) between a first and subsequent conviction ~~↔ or bail forfeiture ↔~~ under this
 117a section.
 118 ~~[(4)]~~(5) The provisions of this section take precedence over the provisions of Sections
 119 41-6a-601, 41-6a-602, 41-6a-603, and 76-3-301.

3. Line 185 through 190:

185 under Subsection (4)(a)(i) if, before sentencing, the owner demonstrates that
 186 owner's or operator's security required under Section 41-12a-301 was obtained
 187 after the violation.

188 (b) For a second and subsequent offense within three years of a previous conviction $\hat{H} \rightarrow [\{ - \}]$
188a {or}] $\leftarrow \hat{H}$
189 $\hat{H} \rightarrow [\{ \text{bail forfeiture} \}] \leftarrow \hat{H}$ under this section, a court shall order a fine of not less than
189a \$1,000.
190 (5) (a) An actor does not violate Subsection (2)(b) if the actor has in effect owner's

4. *Line 191:*

191 security on a Utah-registered motor vehicle or an equivalent that covers the

5. *Line 191 through 196:*

191 security on a Utah-registered motor vehicle or an equivalent that covers the
192 operation, by the actor, of the motor vehicle the actor is operating.
193 (b) It is an affirmative defense to a charge or in an administrative action for a violation of
194 Subsection $\hat{H} \rightarrow [\{ (2) \}] (2)(c) \leftarrow \hat{H}$ that the actor had owner's or operator's security
194a in effect for the
195 vehicle that the actor was operating at the time of the actor's citation or arrest.
196 (6) A peace officer may not cite or arrest an actor for a violation of Subsection (2)(c) if the

6. *Line 334 through 337a:*

334 ~~originally required, the department shall refuse the application unless the person~~
335 ~~reestablishes proof of owner's or operator's security and maintains the proof for~~
336 ~~the remainder of the three-year period.]~~
337 $\hat{H} \rightarrow [\{ (3) \text{ A violation of this section is subject to the penalties described in Section } \}$
337a 41-12a-302.] $\leftarrow \hat{H}$